

# CAR LOAN AGREEMENT

**Document No.:** DL/2026/693833

**Date:** 05/01/2026

**Place:** Bangalore, India

## 1. THE PARTIES

**LENDER (Financial Institution):**

Name: HDFC Bank

Address: 742, Sagar Chowk, Kollam 107191

**BORROWER (Debtor):**

Name: ADWETA KUNDA

Age: 29 years | Occupation: Chief Operating Officer

Address: 664, Yohannan Chowk Nadiad 750570

PAN: NLPPD9438I | Aadhaar: 5869 7547 9686

**Co-Borrower (if applicable):**

Name: Harini Mitter

Relationship: Business Partner

## 2. VEHICLE DETAILS

The Vehicle purchased by the Borrower is described in the table below:

| Particulars                         | Details           |
|-------------------------------------|-------------------|
| Make/Manufacturer                   | Hyundai           |
| Model                               | Ciaz ZXi+         |
| Year of Manufacture                 | 2026              |
| Body Type                           | Hatchback         |
| Color                               | Silky Silver      |
| Engine Number                       | UM8HR2215355      |
| Chassis Number                      | MA3FF3A12G6683076 |
| Vehicle Identification Number (VIN) | MA3FF3A12G6683076 |
| Registration Number                 | YO-93-IB-9475     |

|                  |         |
|------------------|---------|
| Engine Capacity  | 1309 cc |
| Fuel Type        | Diesel  |
| Odometer Reading | 0 km    |

The asset described above shall hereinafter be referred to as the "Vehicle" and serves as the primary security for the Loan amount disbursed.

### 3. LOAN DETAILS

| Particulars                         | Amount               |
|-------------------------------------|----------------------|
| Vehicle Showroom Price              | Rs. 1,292,236        |
| Road Tax and Registration           | Rs. 77,534           |
| Insurance (1st Year Premium)        | Rs. 38,458           |
| Accessories                         | Rs. 46,199           |
| <b>Total Vehicle Cost</b>           | <b>Rs. 1,454,427</b> |
| Down Payment by Borrower            | Rs. 279,146          |
| <b>Loan Amount (Principal)</b>      | <b>Rs. 1,175,281</b> |
| Processing Fee                      | Rs. 17,629           |
| <b>Total Amount to be Disbursed</b> | <b>Rs. 1,192,910</b> |

**Loan Disbursement Date:** 01/01/2026

**Disbursement Mode:** Direct transfer to authorized Dealer bank account via NEFT/RTGS.

### 4. INTEREST RATE AND TENURE

**Rate of Interest:** 8.78% per annum (compounded monthly) [cite: 1474]

**Loan Tenure:** 48 months (4 years) [cite: 1475]

**Loan Commencement Date:** 04/01/2026 [cite: 1476]

**Loan Maturity Date:** 22/12/2029 [cite: 1477]

### 5. PAYMENT SCHEDULE

|                   |         |
|-------------------|---------|
| Payment Frequency | Monthly |
|-------------------|---------|

|                                               |                        |
|-----------------------------------------------|------------------------|
| <b>Equated Monthly Installment (EMI)</b>      | Rs. 29,124/-           |
| <b>Monthly Payment Due Date</b>               | The 6th of every month |
| <b>Total Interest Payable</b>                 | Rs. 222,671/-          |
| <b>Total Amount Payable (Principal + Int)</b> | Rs. 1,397,952/-        |
| <b>Loan Maturity Date</b>                     | 06/02/2030             |

#### **Indicative Amortization Schedule (First 10 Months):**

| <b>Month</b> | <b>Principal (A)</b> | <b>Interest (B)</b> | <b>EMI (A+B)</b> | <b>Balance</b> |
|--------------|----------------------|---------------------|------------------|----------------|
| 1            | 20,525               | 8,599               | 29,124           | 1,154,756      |
| 2            | 20,675               | 8,449               | 29,124           | 1,134,081      |
| 3            | 20,826               | 8,298               | 29,124           | 1,113,255      |
| 4            | 20,979               | 8,145               | 29,124           | 1,092,276      |
| 5            | 21,132               | 7,992               | 29,124           | 1,071,144      |
| 6            | 21,287               | 7,837               | 29,124           | 1,049,857      |
| 7            | 21,443               | 7,681               | 29,124           | 1,028,414      |
| 8            | 21,599               | 7,525               | 29,124           | 1,006,815      |
| 9            | 21,757               | 7,367               | 29,124           | 985,058        |
| 10           | 21,917               | 7,207               | 29,124           | 963,141        |

## **6. PAYMENT METHOD**

All payments under this Agreement shall be made by the Borrower to the Lender through the following methods and instructions:

**1. Primary Method:** Automatic Electronic Clearing System (ECS) / National Automated Clearing House (NACH) / Auto-debit from the Borrower's designated Bank Account.

**2. Alternative Methods:** Account Payee Cheque, Demand Draft, or Bank Transfer via NEFT / RTGS / IMPS (subject to prior approval by the Bank).

**3. Account Name:** ICICI Bank Limited - Auto Loan Division

**4. Bank Name:** ICICI Bank Limited

**5. Account Number:** 203868363343657

**6. IFSC Code:** ICIC0000001

**7. Branch Address:** Koramangala, Bangalore, Karnataka, India.

**8. Beneficiary Code:** XEACUJ631

**9. Mandate Execution:** The ECS/Auto-debit mandate must be successfully executed and verified on or before 06/02/2026.

## 7. LATE PAYMENT AND DEFAULT CHARGES

**1. Late Payment Fee:** A fee of Rs. 600 or 0.93% of the EMI amount, whichever is higher, shall be levied if the installment is not credited within 5 days of the due date.

**2. Default Interest:** In addition to the contractual interest, a penal interest of 1.5% per annum shall be charged on all overdue amounts from the date of default until the date of realization.

**3. Cheque/ECS Bounce Charges:** A charge of Rs. 750 shall be payable for every instance of dishonor of Cheque, ECS, or NACH mandate provided by the Borrower.

**4. Legal Notice Charges:** In the event of continued default, the Borrower shall be liable to pay Rs. 2,000 towards the cost of issuance of legal notices by the Bank's authorized solicitors.

**5. Repossession & Recovery:** A charge of Rs. 4,500 shall be applicable for the issuance of a pre-repossession notice and subsequent field visits by recovery agents.

## 8. SECURITY/COLLATERAL

The Borrower hereby pledges and hypothecates the Vehicle (as described in Section 2) as security for the repayment of the Loan, together with all principal, interest, and other charges due under this Agreement.

**1. Hypothecation:** The Vehicle shall be hypothecated in favor of ICICI Bank Limited under the Securitization and Reconstruction of Financial Assets and Enforcement of Security Interest (SARFAESI) Act, 2002.

**2. Registration Certificate:** The Vehicle's Registration Certificate (RC) shall be endorsed with ICICI Bank Limited's name as the hypothecatee. The Borrower shall provide a copy of the RC to the Bank immediately upon issuance.

**3. Enforcement of Security:** In the event of a default, the Bank retains the right to repossess and sell the Vehicle to recover outstanding amounts without court intervention, subject to applicable legal procedures under SARFAESI.

**4. Insurance Interest:** A comprehensive insurance policy is mandatory with ICICI Bank Limited named as the sole 'Loss Payee'. The Bank's interest must be noted in the policy at all times.

**5. Registration with CERSAI:** The security interest created over the Vehicle shall be registered with the Central Registry of Securitisation Asset Reconstruction and Security Interest (CERSAI) within 45 days of disbursement.

## 9. PREPAYMENT AND EARLY SETTLEMENT

- 1.** The Borrower has the right to prepay the entire loan or make partial prepayments, subject to the Bank's prevailing prepayment policy at the time of such payment.
- 2. Partial Prepayment:** Minimum partial prepayment amount shall be Rs. 15,000. Such amounts shall be adjusted first against any accumulated interest and subsequently against the principal outstanding.
- 3. Full Prepayment:** No prepayment penalties or foreclosure charges are applicable for individual borrowers. However, a statutory Loan Closure Certificate Fee of Rs. 750 is payable at the time of closure.
- 4. Documentation Release:** Upon full settlement, the Lender shall issue a No-Objection Certificate (NOC), discharge CERSAI registration, and initiate the release of hypothecation on the Vehicle's RC within 5 business days.
- 5. Statement of Account:** A final statement of account and interest certificate shall be provided to the Borrower within 5 business days of the final payment verification.

## **10. BORROWER'S OBLIGATIONS**

The Borrower hereby agrees to the following undertakings:

- 1.** Repay the loan amount in full along with accrued interest as per the agreed payment schedule.
- 2.** Obtain and maintain comprehensive insurance on the Vehicle throughout the loan tenure with premium paid regularly.
- 3.** Maintain the Vehicle in good condition and carry out all manufacturer-recommended services on time.
- 4.** Register the Vehicle with the Regional Transport Authority (RTA) under the Motor Vehicles Act, 1988.
- 5.** Obtain the hypothecation endorsement on the Vehicle's Registration Certificate within 30 days.
- 6.** Not sell, transfer, pledge, or create any lien on the Vehicle without the Bank's prior written consent.
- 7.** Not use the Vehicle for commercial taxi services, public transport, or any illegal/prohibited purposes.
- 8.** Maintain all necessary permits, licenses, and valid driving license for operating the Vehicle.
- 9.** Pay all applicable taxes, registration renewal fees, and traffic challans within the stipulated period.
- 10.** Provide regular maintenance and keep the Vehicle in roadworthy condition at all times.
- 11.** Inform the Bank immediately (within 48 hours) of any accident, damage, theft, or insurance claim.
- 12.** Allow authorized Bank representatives to inspect the Vehicle upon giving 7 days advance notice.
- 13.** Not modify the Vehicle or remove safety features without the Bank's written consent.

14. Not leave India for a stay exceeding 6 months without prior written permission from the Bank.
15. Inform the Bank of any change in contact details or employment status within 20 days.

## 11. LENDER'S RIGHTS

- 1. Repossession:** In the event of a sustained default and following the issuance of mandatory notices under the SARFAESI Act, the Bank shall have the absolute right to repossess the Vehicle.
- 2. Legal Action:** The Bank reserves the right to initiate legal proceedings through competent courts, tribunals, or SARFAESI enforcement to recover all outstanding principal, interest, and costs.
- 3. Insurance Proceeds:** The Bank shall maintain the first charge and right to all insurance proceeds in cases of total loss, theft, or major accidents involving the Vehicle.
- 4. Right of Inspection:** The Bank or its authorized agents may inspect the Vehicle and verify the Borrower's financial standing at any reasonable time, subject to prior notice.
- 5. Power of Sale:** The Bank may dispose of a repossessed vehicle through public auction or private treaty. Any surplus after settling all Bank dues and recovery costs shall be refunded to the Borrower.
- 6. Modification of Terms:** The Bank reserves the right to modify applicable interest rates and service charges by providing 15 days' prior written notice to the Borrower.
- 7. Cross-Default:** Any default by the Borrower in any other loan, credit facility, or obligation to the Bank shall be treated as a default under this Agreement, triggering acceleration of the loan.

## 12. REPRESENTATIONS AND WARRANTIES

The Borrower hereby represents and warrants to the Bank as follows:

1. The Borrower has the full legal capacity, power, and authority to enter into this Agreement and perform the obligations hereunder.
2. The Borrower is the sole legal owner of the funds used for the margin money and possesses the absolute right to hypothecate the Vehicle as collateral.
3. The Vehicle is, and shall remain, free from any prior claims, liens, encumbrances, or mortgages other than the security interest created in favor of the Bank.
4. All information, documents, and declarations provided during the loan application process—including income, employment, and assets—are true, accurate, and complete.
5. The Borrower is not in breach of any existing loan agreements or financial obligations with any other bank or financial institution.

6. The loan is being availed for the specific personal use mentioned in the application and shall not be diverted for speculative or illegal purposes.
7. No material litigation, arbitration, or administrative proceedings are currently pending or threatened against the Borrower which could affect their financial standing.
8. The Borrower has disclosed all existing loans, contingent liabilities, and financial commitments to the Bank prior to the execution of this Agreement.

### **13. COVENANTS AND UNDERTAKINGS**

1. The Borrower shall comply with all applicable laws, regulations, and rules related to vehicle ownership, operation, and usage.
2. The Borrower shall not leave India for permanent emigration or long-term employment (exceeding 12 months) without settling the outstanding loan balance.
3. The Borrower shall maintain an active comprehensive insurance policy with valid coverage and timely premium payments.
4. The Borrower shall not engage in any activity that would adversely affect the value, condition, or marketability of the Vehicle.
5. The Borrower shall cooperate with the Bank in all matters related to the Vehicle, loan administration, and compliance.
6. The Borrower shall keep the Bank informed of any material change in financial position, employment status, or personal circumstances.
7. The Borrower shall maintain the Vehicle's roadworthiness certificate (RC and Fitness) valid at all times.
8. The Borrower shall ensure the Vehicle is always properly registered with a current road tax payment.
9. The Borrower shall not allow any unlicensed person to drive the Vehicle or use it in violation of its registration conditions.
10. The Borrower shall not use the Vehicle in any manner that would invalidate the insurance policy.

### **14. EVENTS OF DEFAULT**

The occurrence of any of the following shall constitute an 'Event of Default' under this Agreement:

1. Failure to pay any monthly installment (EMI) within 7 days of its respective due date.
2. Allowing the comprehensive insurance policy of the Vehicle to lapse, expire, or become invalid for any reason.
3. The sale, transfer, pledge, or creation of any third-party interest in the Vehicle without the Bank's prior written consent.

4. Discovery that the Borrower provided false, misleading, or fraudulent information in the loan application or supporting documents.
5. Failure to maintain the Vehicle in an insurable, operational, and roadworthy condition as per manufacturer guidelines.
6. The Borrower being declared insolvent or bankrupt, or initiating any proceedings for the same.
7. The passing of any legal decree or judgment against the Borrower for non-payment of debts that remains unsatisfied for 15 days.
8. Breach of any covenant or undertaking under this Agreement, if such breach is not rectified within 30 days of notice from the Bank.
9. The Borrower leaving the Republic of India permanently or for an extended period without prior settlement of the Loan.
10. Evidence of fraud, misrepresentation, or deliberate concealment of material facts relating to the Borrower's financial standing.
11. The cancellation of the Vehicle's registration or the impounding of the Registration Certificate (RC) by government authorities.
12. A material adverse change in the Borrower's employment status or income which, in the Bank's opinion, affects repayment capacity.

## 15. CONSEQUENCES OF DEFAULT

Upon the occurrence of an Event of Default, the Bank shall be entitled to exercise any or all of the following rights and remedies:

- 1. Acceleration of Dues:** The Bank may declare the entire outstanding principal amount of the Loan, together with accrued interest and all other charges, to be immediately due and payable.
- 2. Repossession of Vehicle:** The Bank may, following the issuance of a pre-repossession notice, take possession of the Vehicle. For this purpose, the Bank's agents are authorized to enter any premises where the Vehicle is located.
- 3. Sale and Disposal:** The Bank may sell the repossessed Vehicle through public auction or private treaty. A mandatory notice of 30 days shall be provided to the Borrower prior to such sale to allow for the settlement of dues.
- 4. Legal and Statutory Recovery:** The Bank may initiate proceedings under the SARFAESI Act, 2002, the Recovery of Debts Due to Banks and Financial Institutions Act, or any other applicable civil or criminal laws.
- 5. Penalty Interest:** Penal interest at the rate specified in Section 7 shall continue to accrue on the total overdue balance until the date of actual realization by the Bank.
- 6. Recovery Costs:** All costs incurred by the Bank, including legal fees, recovery agent commissions, garage charges, and auctioneer expenses, shall be debited to the Borrower's account.



**7. Credit Bureau Reporting:** The Bank shall report the Borrower's default status to the Credit Information Bureau (India) Limited (CIBIL) and other authorized credit rating agencies.

**8. Lien and Set-Off:** The Bank shall have the right of lien and set-off on all other accounts, deposits, or assets of the Borrower held with the Bank in any capacity.

## **16. GOVERNING LAW AND DISPUTE RESOLUTION**

**1. Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of India, including the Motor Vehicles Act, 1988; the Indian Contract Act, 1872; and the SARFAESI Act, 2002.

**2. Mutual Negotiation:** In the event of any dispute or difference, the parties shall first attempt to resolve the matter through direct mutual negotiation within a period of 30 days.

**3. Banking Ombudsman:** If a dispute remains unresolved, the Borrower may approach the Banking Ombudsman under the Integrated Ombudsman Scheme of the Reserve Bank of India.

**4. Arbitration:** Any unresolved dispute shall be referred to arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be as per the Bank's regional headquarters, and proceedings shall be in English.

**5. Jurisdiction of Courts:** Subject to the arbitration clause, the courts in Mumbai shall have exclusive jurisdiction over all matters arising out of this Agreement.

The Borrower hereby waives any right to initiate legal proceedings in any court or forum other than those specifically mentioned above.

## **17. NOTICES AND COMMUNICATION**

All notices and communications under this Agreement shall be in writing and may be delivered through the following channels:

**1. Personal Delivery:** Hand-delivered to the registered address specified in this Agreement.

**2. Registered Post:** Sent via registered post with acknowledgment due or through a reputed courier service.

**3. Electronic Mail:** Sent to the registered email address with delivery and read receipt enabled.

**4. Digital Messaging:** Short Message Service (SMS) or instant messaging to the registered mobile number.

**5. Deemed Receipt:** Notices shall be deemed received within 5 business days if sent via post, or immediately if delivered personally or via electronic means.

## **18. LOAN CANCELLATION AND WITHDRAWAL**

The Bank reserves the absolute right to cancel or withdraw this Loan facility at any stage if:

1. The Borrower is found to have provided false, misleading, or incomplete information during the application process.
2. An adverse credit bureau report (CIBIL/Equifax) is received after the initial loan approval.
3. The market valuation of the Vehicle decreases substantially prior to the date of disbursement.
4. The Borrower defaults on any other existing financial obligation held with the Bank.
5. The Vehicle is discovered to have pre-existing damage, undisclosed liens, or title defects.
6. **Repayment:** In the event of such cancellation, any amounts already disbursed must be repaid by the Borrower within 15 days.

## 19. MISCELLANEOUS PROVISIONS

1. **Entire Agreement:** This Agreement constitutes the entire agreement between the parties and supersedes all previous communications, representations, or understandings.
2. **Amendments:** No amendments or modifications to this Agreement shall be valid unless executed in writing and signed by authorized representatives of both parties.
3. **Severability:** If any provision of this Agreement is found to be invalid or unenforceable by a court of law, the remaining provisions shall continue in full force and effect.
4. **No Waiver:** No failure or delay by the Bank in exercising any right or remedy shall constitute a waiver of that term or any subsequent breach.
5. **Confidentiality:** Both parties shall maintain the strict confidentiality of all commercial, financial, and personal information disclosed during the tenure of this Loan.
6. **Counterparts:** This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument.

## 20. ACKNOWLEDGMENT AND ACCEPTANCE

The Borrower hereby acknowledges and declares that:

1. They have read, reviewed, and fully understood all the terms and conditions set forth in this Agreement.
2. They have been provided with a reasonable opportunity to seek independent legal and financial advice before execution.
3. They accept all terms and obligations willingly, without any form of duress, coercion, or undue influence.
4. They fully comprehend the legal and financial implications of a default and the subsequent consequences thereof.
5. They agree to comply with all applicable laws, RBI guidelines, and statutory regulations during the tenure of the Loan.

## 21. EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date mentioned above.

### FOR THE LENDER:

Signature: \_\_\_\_\_

Name: \_\_\_\_\_

Designation: \_\_\_\_\_

Date: \_\_\_\_\_

Stamp: \_\_\_\_\_

### FOR THE BORROWER:

Signature: \_\_\_\_\_

Name: ADWETA KUNDA

Date: \_\_\_\_\_

### FOR THE CO-BORROWER (if applicable):

Signature: \_\_\_\_\_

Name: Harini Mitter

Date: \_\_\_\_\_

## **DOCUMENTS ATTACHED (ANNEXURES)**

The following documents are attached to and form an integral part of this Loan Agreement:

- 1.** Annexure A: Vehicle Registration Certificate (RC) Copy
- 2.** Annexure B: Insurance Policy Document and Premium Receipt
- 3.** Annexure C: Income Proof, Salary Slips, and Employment Certificate
- 4.** Annexure D: Bank Account Details and Executed ECS/NACH Mandate Form
- 5.** Annexure E: KYC Documents (Aadhaar Card, PAN Card, and Address Proof)
- 6.** Annexure F: Vehicle Valuation and Technical Inspection Report
- 7.** Annexure G: Detailed Schedule of Standard Terms and Conditions
- 8.** Annexure H: Repayment Schedule and EMI Amortization Table